

Ministry of Local Government and Rural Development

Zambia Devolution Support Programme

(P178492)

Environmental and Social Management Plan

NOVEMBER 2024

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ABBREVIATIONS

CBD	Convention Biological Diversity
CoC	Code of Code
EMA	Environmental Management Act
EPPCA	Environmental Protection and Pollution Control Act
ESCP	Environmental and Social Commitment Plan
ESIA	Environment and Social Impact Assessment
ESS	Environmental and Social Standards

GM	Grievance Mechanism
GRM	Grievance Redress Mechanism
GBV/SEA-H	Gender-based violence and/or sexual exploitation, abuse, and harassment
LA	Local Authority
LMP	Labor Management Procedure
M&E	Monitoring and Evaluation
MoFNP	Ministry of Finance and National Planning
MoH	Ministry of Health
NBSAP	National Biodiversity Strategy and Action Plan
OAG,	Office of the Auditor General
OSH	Occupational Health and Safety
PMU	Project Management Unit
POM	Project Operations Manual
SEP	Plan Stakeholder Engagement
ZEMA	Zambia Environment Management Authority
ZDSP	Zambia Devolution Support Program
ZPPA	Zambia Public Procurement Authority

I INTRODUCTION

This report is an Environmental and Social Management Plan for the Zambia Devolution Support Program.

1.1 Project Description

The Zambia Devolution Support Programme (ZDSP) has been developed to support the government decentralisation agenda within the Government Programme. The Government Programme focuses on four (4) pillars of decentralisation namely: fiscal decentralisation and financial management; local development planning and budgeting; governance; and capacity building and human resource management. In supporting the Government Programme, the ZDSP aims to strengthen the financing, institutional support and accountability of Town Councils within the country. As part of the World Bank's support to the Government of Zambia to ensure effective decentralisation, the ZDSP will provide the necessary fuel for the process.

2 STUDY METHODOLOGY

2.1 Introduction

The ESMP preparation followed a typical Environmental Impact Assessment regulation (1997) of Zambia Environment Management Authority (ZEMA) process. It follows a typical process of establishing the current baseline conditions, identifying specific environmental and social risks that need to be addressed, characterization of the effects the project will have and the impacts (positive or negative) they will result in, determination of significance of the issues identified, establishment of mitigation measures and monitoring measures, and finally proposals for management plans to ensure effective implementation of mitigation and management of the anticipated issues.

The approach and methodology chosen ensures that applicable World Bank Environmental and Social Standards (ESS), the ZEMA Environment and Social Impact Assessment (ESIA) processes have been followed. This involved collecting data on the environmental and social situation, conducting consultations with stakeholders and data analysis.

2.2 Literature review

This included studying relevant legislation and policies; national and local secondary (collated) data sources; related reports and documents related to the decentralization process in Zambia and World Bank safeguards policies on ESIA and associated guidelines. Key documents reviewed included: -

- The Constitution of Zambia
- Environmental Management Act 2011
- Environmental (Impact Assessment and Audit) Regulations, 1997
- The Physical Planning Act, 1996

- The Public Health Act (Cap 295)
- Occupational Health and Safety Act No. 36 of 2010
- Water Act Cap 198
- Solid Waste Regulation and Management Act No. 20 of 2018
- Urban and Regional Planning Act No. 5 of 2018

2.3 Environmental and Social Baseline

Environmental and social baseline comprised secondary data collected through review of literature.

2.4 Impact Identification and Mitigation Measures

The primary tool for identification of impacts and mitigation was using expert judgment and consultations including recommendations from stakeholders. Impacts were identified from the environmental and socio-economic baseline. Impact assessments were also based on criteria developed from Zambian legal standards and World Bank ESS.

3 DESCRIPTION OF THE PROJECT

The Zambia Devolution Support Program (ZDSP), hereafter referred to interchangeably as ZDSP or the Program, is a World Bank supported Program for strengthening devolution in the country. The program supports specific components of the government program as provided for in the decentralization policy. The ZDSP will support the implementation of a subset of activities under the Government program and include:

- (i) the introduction of a capital grant to fill the gap in the existing intergovernmental fiscal framework;
- (ii) strengthening the intergovernmental fiscal policy framework;
- (iii) strengthening PFM and accountability of Local Authorities; and
- (iv) putting in place a sustainable and inclusive framework for capacity building for LAs.

The ZDSP will assist the Government in achieving a set of key results under the Government Program. The ZDSP will be financing specific results at the central and local authority levels, leveraging other devolution capacity building resources provided by the government and Cooperating Partners. The Zambia Devolution Support Program is called a hybrid operation because it consists of two lending instruments of the World Bank, which are together referred to as the ZDSP operation:

- (i) a Program called Program for Results or PforR, with an outlay of US Dollar 195 million; and
- (ii) a Project called Investment Project Financing (IPF), with an outlay of US Dollar 15 million.

The PforR component covers the key result areas, and the disbursements are directly linked to achievement of tangible and verifiable results called Disbursement Linked Indicators (DLIs). The IPF component instead, will provide input-based capacity building support and the project management activities. The hybrid approach is needed due to the large

existing variability in the capacity of the LAs and the need to help weak LAs to achieve eligibility when the Annual Performance Assessment is done and access capital grants as per design of the PforR program as early as possible. The IPF based capacity support will focus on targeted training support in the first two years of the Program, with an eventual transition of the capacity building support into a fully results-based approach.

The ZDSP has a support duration of five years covering the period 2022-2027. With an outlay of 210 million US Dollars, the operation covers Local Authorities (LAs) in the country and aims to work closely with the Central Government entities such as Decentralization Secretariat, MoFNP, MLGRD, and Office of the Auditor General, ZPPA, LGSC and others. Direct support will also be provided to Central Government. The ZDSP will also leverage ongoing support provided by various Cooperating Partners in areas relating to decentralization, PFM, accountability and service delivery.

3.1 Program Objectives

The Project Development Objectives (PDO) for the program is to strengthen the financing, institutional performance and accountability of LAs in Zambia.

The PDO focuses on the strengthening of the LAs as a self-standing tier of government. The Program aims to strengthen the LA systems to enable them to provide improved access to devolved public services through efficient and robust systems for decentralized and participatory planning. It also aims to strengthen their ability to design, implement and manage their development plans and projects for accountable and sustainable local service delivery.

3.2 Program Outcomes-PDO Level Indicators for Program success

The success of the ZDSP will be measured through the following PDO level indicators:

- (i) Local Authorities that achieve the minimum threshold scores in the Annual Performance Assessment (APA) (Number);
- (ii) Inter-governmental fiscal framework strengthened (Text);
- (iii) Town Councils preparing their annual plans in a participatory manner (Yes/No)

The PDO aspires to support a key feature of the institutional dimension, namely the development and strengthening of systems and procedures to enhance accountability. The proposed Program includes a series of measures to enhance the voice of the people, both as citizens and consumers of public services, such as: (i) the development and roll out of a Grievance Redress Mechanism (GRM) that offers several avenues to provide feedback; and (ii) the implementation of a comprehensive Information, Education and Communication campaign seeking to improve local self-governance and service delivery as well as program communication.

3.3 Key Result Areas

The PforR program will focus on four result areas:

- (i) Result Area One: Capital Grants to Town Councils;
- (ii) Result Area Two: Strengthened PFM, transparency and accountability of LAs;
- (iii) Result Area Three: Strengthened Fiscal Framework for Devolution; and
- (iv) Result Area Four: Capacity Building of Town Councils.

4 LEGAL AND POLICY FRAMEWORK

The ZDSP safeguards are aligned with the Country's current regulatory, policy and institutional framework for its effective implementation. The program will also follow international guidelines for safeguards

4.1 National Regulatory Framework

The proposed project activities touch on many regulatory instruments which need compliance with. Presented below is a listing of key legislation relevant to the project and requiring legal compliance were applicable.

4.1.1 Constitution of Zambia (1996) as Amended in 2016

The Constitution of Zambia is supreme over any legal policy or Act in Zambia; any act of Government or any law that is inconsistent with its provisions, is invalid to the extent of such inconsistency (Article 1 (3)). As such the reviewed policies and legislations, relevant to the project activities for the Zambia Devolution Support Program must be in line with the constitution. The constitution has included matters that relate to human health, medical facilities, occupational health and safety, and environment and natural resource management; thus, providing a foundation to the Environmental and Social Management framework for Project. Article 112 provides Directive Principles of State Policy which, in relation to the project, include: Part (d): The State shall endeavor to provide clean and safe water, adequate medical and health facilities and decent shelter for all persons, and take measures to constantly improve such facilities and amenities; Part (h): The State shall strive to provide a clean and healthy environment for all;

4.1.2 Environmental Management Act (2011)

The Environmental Management Act (EMA) was enacted in 2011 to repeal the Environmental Protection and Pollution Control Act (EPPCA), 1990.

The Act provides for integrated environmental management, protection and conservation of the environment and sustainable management and use of natural resources. It promotes prevention and control of pollution and environmental degradation; and public participation in environmental decision making and access to environmental information. Part 1, Section 4, (1) of the Act gives every person living in Zambia the right to a clean, safe and healthy environment, including the right of access to the various elements of the environment for health (Part 1, Section 4, (2)).

Thus this Project must be designed in a way that the activities do not threaten individuals, cause harm to human health or the environment. Part 2, Section 1, (Sub-section 1) of the Act gives the Zambia Environmental Management Agency (ZEMA) the mandate to ensure the sustainable management of natural resources and protection of the environment and the prevention and control of pollution. In line with the mandate, one of the core functions of ZEMA is to draw and enforce regulations related to water, air, land and noise pollution, pesticides and toxic substances, waste management and natural resources management.

In addition, ZEMA manages the Environmental Impact Assessments process provided for in the Act as one of the measures for Integrated Environmental Management: “A person shall not undertake any project that may have an effect on the environment without the written approval of the Agency, except in accordance with any conditions imposed in that approval (Part III, Section 24 (1))”. The approval follows preparation of an Environmental and Social Impact Assessment (ESIA) and ZEMA determining that the effects of the proposed project will not cause adverse effects or that the mitigation measure are adequate to satisfactorily mitigate the effects. Thus the Local Authority will be required to carry out environmental and social assessments depending on the nature of the activities at the site. The Environmental and Social assessments will ensure that the potential impacts of a project on the natural environment

and local communities, whether positive and negative, are assessed at the planning and decision making stage, thus enabling appropriate measures to be put in place to prevent, limit or manage any potentially negative impacts of a project whilst enhancing the positive impacts, in accordance with the principles of sustainable development.

4.1.3 The Environmental Management (Licensing) Regulations, 2013

Part 2 Section 4 of the regulations state that a person who intends to emit or discharge a pollutant or contaminant into the environment shall apply to the Agency for an emission license in Form I set out in the First Schedule of the Environmental Management Act of 2011. The Agency shall, in accordance with the guidelines set out in the Second Schedule of the EMA, assess the quality of ambient air to protect human health, animal or plant life and the environment. A holder of an emission license relating to air shall, among other activities:

- i. Install air measuring devices and pollution control equipment at the plant, undertaking or process that emits air pollutants; in accordance with the emission limits as prescribed in the Second Schedule of the Environmental Management Act.
- ii. collect such samples and conduct such analysis of the emissions as the Agency may direct for the monitoring of emission levels
- iii. limits prescribed in the Second Schedule; and
- iv. Take reasonable steps to contain the discharge of emissions to prevent, mitigate or remedy their adverse effects on human health, animal or plant life and the environment.

Part III, Section 11 of the regulations state that a person shall not conduct open air burning of waste from industrial, commercial operations or domestic or community activities except with the written consent of the Agency.

4.1.4 Occupational Health and Safety Act (2010)

This Act provides for the protection against risks to health or safety arising from, or in connection with, the activities of persons at work. Therefore it is important that the activities of the project must protect the workers in the HCFs. Part IV, Section 16 (1 and 2) outlines the duties of the employer which are generally: providing a safe working environment; making sure that the employees are healthy and fit to work in the provided work environment; providing protective clothing or equipment; making sure there are health, safety, emergency and first aid measures; and providing information on safety and health. On the other hand the employees have the responsibility for their personal health and safety (Part IV, Section 17 (1)). For success of the project, employers and employees must comply with the provisions of the Act, which also requires the establishment of health and safety committees and enforcement of the occupational health and safety measures.

4.1.5 Public Health Act Cap 295

This Act is for the preservation of public health in Zambia. It provides for the prevention and suppression of diseases and generally to regulate all matters connected with public health in the country.

4.1.6 Gender Equity and Equality Act, 2015

An Act to establish the Gender Equity and Equality Commission and provide for its functions and powers; provide for the taking of measures and making of strategic decisions in all spheres of life in order to ensure gender equity, equality and integration of both sexes in society; promote gender equity and equality as a cross cutting issue in all spheres of life and stimulate productive resources and development opportunities for both sexes; prohibit harassment, victimization and harmful social, cultural and religious practices; provide for public awareness and training on issues of gender equity and equality; provide for the elimination of all forms of

discrimination against women, empower women and achieve gender equity and equality by giving effect to the Convention on the Elimination of all Forms of Discrimination against Women, the Protocol to the African Charter on Human and People's Rights on the Rights of Women in Africa and the SADC Protocol on Gender and Development; and provide for matters connected with, or incidental to, the foregoing.

4.1.7 Solid Waste Regulation and Management Act No. 20 of 2018

An Act to provide for the sustainable regulation and management of solid waste; general and self-service solid waste services; the incorporation of solid waste management companies and define their statutory functions; the licensing and functions of solid waste service providers, operators and self-service solid waste providers and provide for their functions; the regulation, operation, maintenance and construction of landfills and other disposal facilities; the setting and approval of tariffs for management of solid waste and provision of solid waste services; and matters connected with, or incidental to, the foregoing.

4.1.8 Industrial and Labour Relations Act, 2013

The Industrial and Labour Relations Act, Chapter 269, provides for the formation of workers and employers representative organizations and the constitution of the Tripartite Consultative Labour Council (TCLC). The TCLC provides a national forum for employers, workers and government to discuss and resolve labour issues, including occupational safety and health, which may be affecting the labour market. The Act also provides for the formulation of recognition and collective agreements, settlement of disputes, strikes and lockouts.

4.2 Policy Framework

Two main sector policies are identified as relevant to the proposed program and need to be complied with, namely the National Health Policy and the National Policy on Environment.

4.2.1 National Health Care Waste Management Plan (2015-2019)

The National Health-Care Waste Management Plan (2015 -2019) was developed as a guide to all institutions producing health-care waste, in planning and implementation of interventions that will reduce mismanagement of hazardous waste in Zambia. The ICWMP must therefore adopt appropriate measures for enhancing waste reduction, recycling, proper waste transportation and adequate final disposal of health-care waste as prescribed in the National Health-Care Waste Management Plan.

4.2.2 National Policy on Environment

The overall vision of the National Policy on Environment is to provide a framework management guide for the management of Zambia's environment and natural resources so as to ensure that they are managed on a sustainable basis and retain their integrity to support the needs of the current and future generation without compromising either of the two. The guiding principle on health are;-

- Urban, district and rural planning and development activities should incorporate human settlement and health concerns;
- Human settlements should incorporate environmental concerns as well as disaster preparedness;
- Temporary settlements for refugees and other displaced people are managed using the same guidelines for environmental, pollution and health concerns as for all other human settlements including environmental impact assessment and monitoring;
- Development and improvement of human settlements should incorporate the concept of community development with focus upon social services, particularly water supply, schools, health facilities,

recreation facilities, communications, transport and security, in order to discourage random roadside ribbon development which is difficult to maintain and tend to be environmentally unfriendly.

4.3 World Bank Environmental and Social Standards

In addition to the national environmental legal framework, this plan takes into consideration the World Bank applicable Environmental and Social Standards (ESS) more especially on the IPF side.

4.4 International Conventions

Zambia is a party to many international and regional conventions aimed at addressing environmental concerns. Those relevant to the proposed project include but not limited to:-

- United Nations Framework Convention on Climate Change
- United Nations Convention on Biological Diversity
- Stockholm Convention
- Convention on the Control of Trans-Boundary Movements of Hazardous Wastes and their Disposal, Basel, 1989
- C155 Occupational Safety and Health Convention 1981
- C148 Working Environment (Air pollution, noise and vibration)
- C161 Occupational Health Service Convention
- Paris Agreement
- Convention on Biological Diversity
- International Labour Organisation (ILO) Conventions

5 DESCRIPTION OF THE BASELINE ENVIRONMENT

This chapter provides a description of the environmental and social baseline of Zambia.

5.1 Location and Size

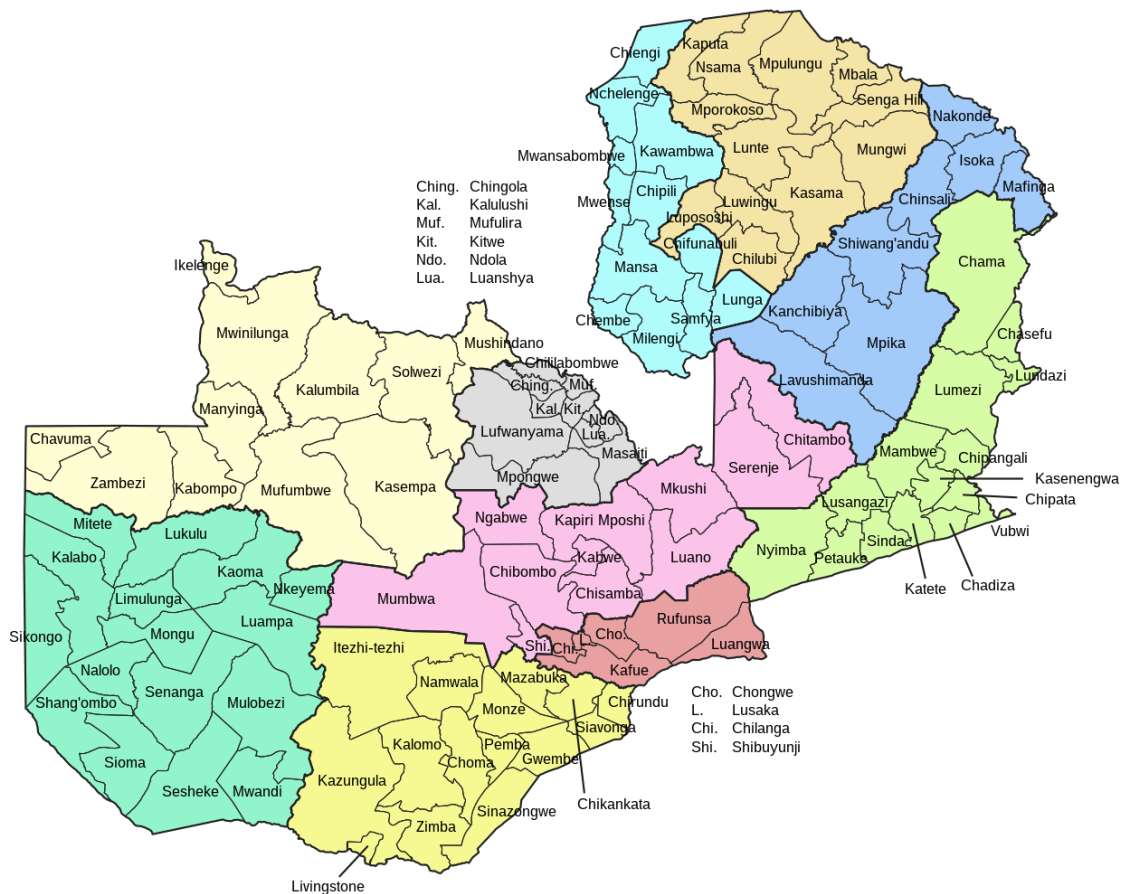
Zambia is a landlocked country that lies at the end of the Great Rift Valley between latitudes 8° and 18° S and longitudes 22° and 33° E. It shares the political borders with eight neighbors, namely Angola, Democratic Republic of Congo, Tanzania, Malawi, Mozambique, Botswana, Namibia, and Zimbabwe. The political boundaries have a number of shared biodiversity resources because of the common habitats. The country expands with an area of 752,618 km² (Dowsett et al., 2008). The Country has 116 districts (5 City Councils, 15 Municipal Councils, and 96 Town Councils).

5.1.1 Country Boundary

Zambia has a long land border on the west with Angola but is divided from its neighbours to the south by the Zambezi River. To the southwest is the thin projection of Namibian territory known as the Caprivi Strip, at the eastern end of which Zambia and three of its neighbours (Namibia, Botswana, and Zimbabwe) appear to meet at a point—a “quadripoint”—although the precise nature of the meeting is contested. Man-made Lake Kariba now forms part of the river border with Zimbabwe. Zambia’s other neighbours include Mozambique to the southeast, Malawi to the east, and Tanzania to the northeast. The long border with the Democratic Republic of the Congo starts at Lake Tanganyika, crosses to Lake Mweru, and follows the Luapula River to the Pedicle, a wedge of Congolese territory that cuts deep into Zambia to give the country its distinctive butterfly shape.

Westward from the Pedicle the frontier follows the Zambezi-Congo watershed to the Angolan border





5.2 Physical Environment

5.2.1 Climate

Although Zambia lies within the tropics, its climate is modified by the altitude of the country and is generally favorable to human settlement and comfort. The marked seasonal pattern of precipitation is caused by the north and south movement of the intertropical convergence zone (ITCZ), which shifts with the Sun. In January the ITCZ is in its southernmost position, and the rainy season is at its peak; by June it has moved north, and the weather is dry. Summer rains reduce the high temperatures that might be expected at this time.

Precipitation (concentrated in just five months) varies according to agroecological region but generally comes in storms with heavy raindrops that lead to a hard soil surface and surface erosion. The driest region receives annual precipitation of less than 30 inches (800 mm), while precipitation in the wettest region normally exceeds 40 inches (1,000 mm);

precipitation occasionally exceeds 55 inches (1,400 mm) in the northeast. Temperature is modified by elevation, with the highest mean daily maximum temperatures occurring in the Luangwa valley and the southwest. The coolest area overall is the high Nyika plateau, in the northeast on the border with Malawi. During the cold months (June and July), the area west of the Line of Rail is coolest, with mean minimum temperatures mostly below the mid-40s F (about 7 °C). Sesheke, in the southwest, has frost on an average of 10 days per year.

5.2.2 Soils

Zambia is divided into three main agroecological regions based primarily upon annual precipitation; there is further variation within regions based on factors such as soil type, temperature and elevation. The first region includes portions of the southwestern corner of the country, as well as the country's major valleys, such as the Gwembe, Zambezi, and Luangwa valleys. This region is the driest and most prone to drought, and its soils contain low levels of organic matter, low nutrient reserves, and high acidity levels. The second region spans the central part of the country and is divided into two subregions: the degraded plateau of the southeast, south-centre, and southwest and the Kalahari Sands and the Zambezi floodplain in the west. Soils of the Kalahari Sands have little agricultural potential and are mainly under woodland. The third region is situated in the northern part of the country; its soils tend to be highly weathered and leached, with a low pH.

5.2.3 Relief

Most of Zambia forms part of the high plateau of this part of Africa (3,000 to 5,000 feet [900 to 1,500 metres] above sea level). Major relief features occur where river valleys and rifted troughs, some lake-filled, dissect its surface. Lake Tanganyika lies some 2,000 feet (600 metres) below the plateau, and the largest rift, that containing the Luangwa River, is a

serious barrier to communications. The highest elevations occur in the east, where the Nyika Plateau on the Malawian border is generally over 6,000 feet (1,800 metres), rising to more than 7,000 feet (2,100 metres) in the Mafinga Hills. The general slope of the plateau is toward the southwest, although the drainage of the Zambezi turns eastward to the Indian Ocean. Over most of the country, ancient crystalline rocks are exposed, the product of prolonged erosion processes. In western Zambia they are overlain by younger sandy deposits, relicts of a once more-extensive Kalahari desert. In central and eastern parts of the country, down warping of the plateau surface forms swamp- or lake-filled depressions (including Lake Bangweulu and the Lukanga Swamp); in more elevated regions, ridges and isolated hills made up of more-resistant rocks punctuate otherwise smooth skylines.

The oldest rocks in the country are volcanics and granites of the Bangweulu block in the northeast. These are 2.5 billion years and older and have been unaffected by orogenic processes since Precambrian times (about 4 billion to 540 million years ago). This old structure is partly covered by ancient sedimentary rocks, and together they constitute the basement complex. Sedimentaries of the Katangan Complex (about 620 million years old) are extensive in the central areas, and mineralization of these rocks is the basis of Zambia's mining industry. Later sedimentary rocks of the Karoo (Karoo) System filled rifted troughs in the plateau surface, some of which, as in the Luangwa and middle Zambezi valleys, have been partially re-excavated. Coal seams occur in Karoo rocks to the north of Lake Kariba. These structural troughs are ancient features. Younger rifts in the north, part of the East African Rift System, are occupied by Lakes Mweru and Tanganyika. Karoo and older sedimentaries are also found in the west, buried under the predominantly sandy deposits of the Kalahari System.

5.2.4 Drainage

The continental divide—between the Congo River drainage, which flows to the Atlantic Ocean, and that of the Zambezi, which drains into the Indian Ocean—runs along the border shared by Zambia and the Democratic Republic of the Congo west of the Pedicle and then northeastward to the border with Tanzania. Both the Luapula (which drains the Bangweulu basin into Lake Mweru) and Lake Tanganyika are tributary to the Congo. The rest of the country lies within the Zambezi basin, the river itself rising in northwestern Zambia and circling through Angola before traversing the sandy plains of western Zambia. At Victoria Falls it drops some 300 feet (90 metres) into a mile wide chasm at the head of the gorge leading down to Lake Kariba and the trough like middle part of its valley. It has two main tributaries in Zambia. Rising on the Copperbelt, the Kafue River drains the Lukanga Swamp and Kafue Flats before an abrupt descent to the Zambezi. The Luangwa River, mostly confined within its rift trough, is quite different. The Bangweulu Swamps and the Kafue Flats are wetlands of international ecological importance.

5.3 Ecological Resources

Zambia's rich biodiversity is scattered in customary or traditionally managed areas, protected areas, insitu conservation areas and agricultural landscapes. As one of the 198 signatories to the Convention on Biological Diversity (CBD), Zambia has developed and revised the National Biodiversity Strategy and Action Plan (NBSAP-2) derived from the global conservation goals, the Aichi targets (GRZ, 2015a). There are at least 12,505 species of organisms in Zambia: 242 are mammal species, 757 bird species, and 6,135 species of invertebrates, 156 reptile species with 45 considered to be rare, 490 fish species and 74 amphibian species. There are 3,543 species of wild flowering plants, 107 cultivated plant species, 567 wild crop relatives and 16 species of domesticated animals. The value of biodiversity can be classified into

anthropocentric (economic or utilitarian values) and intrinsic or ethical values. The anthropocentric value has direct and indirect economic benefits to society (Mwitwa, 2017). Biodiversity has an intrinsic value as it performs various ecosystem services through inherent ecological processes in the conservation of species, genetic resources and ecosystems. Biodiversity provides the anthropocentric values comprised of forestry, water, fisheries, wildlife, environment, natural resource and land, agriculture, livestock and energy sectors, civil society, cooperating partners, financial organisations, insurance entities, mining companies, revenue collection and administration. The threats to Zambia's biodiversity include uncontrolled wild fires, unsustainable utilization/illegal offtake, pollution, charcoal production, poor governance and agricultural practices, mining operations, invasive species, inadequate baseline updates/ resource monitoring and encroachment.

Zambia's agro-ecological systems are categorized into 3 agro-ecological regions (AERs), differentiated mainly by amount of rainfall received per annum. Small-scale farmers are responsible for producing 80% of output (their contribution to livestock production is around 30%). A small number of commercial or large-scale farmers are involved in commercial crop production in wheat, soya bean and sugar cane, and in livestock production. In spite of agro-biodiversity being a vital resource for the country, it has not been given adequate attention in terms of management and utilization compared to forestry, wild animals and the fisheries.

On the plateau, miombo woodland is characteristic: a semicontinuous tree cover dominated by small leguminous trees of the *Brachystegia* and *Julbernardia* genera but with significant grassy undergrowth. Burning of the grasses in the dry season causes the trees to develop a corky, fire-resistant bark. Mopane woodland, in which *Colophospermum mopane* dominates but in which the baobab is distinctive, occurs in the drier and hotter valleys of the Zambezi in the south and in the Luangwa valley.

Zambezi teak (*Baikiea plurijuga*) occurs in the southern fringe of the area covered by the Kalahari Sands. Mukwa (*Pterocarpus angolensis*), a good furniture timber, is found in the Lake Bangweulu area. More than one-tenth of the country has been set aside as forest reserve or protected forest areas; in all, some two-fifths of the country's land is under protection.

5.4 Social, Economic and Cultural Environment

5.4.1 Demographics

Zambia is situated on a high plateau and takes its name from the Zambezi River, which drains all but a small northern part of the country. Zambia's population is small relative to the country's area, and its growth rate is lower than that of many of its neighbours in sub-Saharan Africa.

Life expectancy in Zambia is below the global average. The life expectancy for Zambia as of 2020 stood at 62 years compared to 73 years (global average). The country's population is relatively young, nearly half under age 15. Zambia's birth rate is significantly higher than the world average, and its death rate is among the highest in the world. Zambia's lower life expectancy and higher death rate are attributable in part to the prevalence of HIV/AIDS in the country. Large parts of Zambia are thinly populated. Much of population is concentrated in the country's most developed area—known as the Line of Rail—which is served by the railway linking the Copperbelt with Lusaka, the capital, and with the border town of Livingstone.

Zambia's population is 19,610,769 million as of 2022. Lusaka Province has the highest proportion of the population followed by Copperbelt Province. Muchinga Province has the lowest proportion of the population as shown in the **table 5-1**. Overall, the average household size tends to be larger in rural areas with an average of 5.2 persons compared to 5.0

persons in urban areas. Male headed households tend to have a larger average household size than female headed households. The average household size for male headed households was 5.4 persons compared to 4.3 persons for female headed households as shown in the **table 5-1 below**.

Table 5-1: Percentage Distribution of Population by Province, Residence, Zambia, 2015

Province	Number Persons
Total Zambia	19,610,769
Central	2,252,483
Copperbelt	2,757,539
Eastern	2,454,788
Luapula	1,514,011
Lusaka	3,079,964
Muchinga	918,296
Northern	1,618,412
North - Western	1,363,520
Southern	2,381,728
Western	1,363,520

The general welfare of any society largely depends on the active economic participation of its citizens. The engagement of individuals in gainful

economic activities directly influence households' well-being. According to the 2015 Zambia Living Conditions Monitoring Survey Report, 58.5 percent (5, 925,412) of the population are in the labour force, while 41.5 percent (4, 203,497) are economically inactive. Of those that are in the labour force, 43 percent, 6.3 percent and 9.2 percent are in paid employment, unpaid family workers and not working, respectively.

5.4.2 Health

Zambia has a well-developed private and public health care system which provides specialized Medical services such as diagnostic, curative, etc. The private health sector in particular has earned the reputation as providers of good quality health care. Government has declared health

Care system as a priority sector. Health systems in Zambia are classified into three major categories:

- First Level comprising of Health Posts, Rural Health Centre and District Hospitals, where primary health care and preventive health services are provided.
- Second Level comprising the provincial and general hospitals, which provide the curative care
- Tertiary level comprising Central hospital and the National University teaching Hospital. Provide specialized care.

The arrangement of health services is along the same administrative lines with the district as the main focus of service delivery, the provincial as the secondary level and central and the university Teaching Hospital as the tertiary level of care.

The disease burden in Zambia varies according to climates with the most prevailing diseases being Malaria, HIV/AIDS, and Tuberculosis, Diarrhoea, skin diseases, Respiratory tract infections and Malnutrition. Recently

Zambia is experiencing a sudden rise in traditionally not known diseases, these are the non-communicable diseases namely Cancer, cardiac, diabetes and renal diseases. This new pattern of diseases has brought with it numerous challenges for the health sector in Zambia, whose service delivery is predominantly public. The ill equipped public health facilities often lack capacity to handle these cases thereby causing the Ministry of Health and individual patients to seek treatment abroad.

5.4.3 Education

Zambia has achieved near universal primary school completion levels - national statistics indicate a completion rate of 91.8 per cent at Grade 7. But this masks considerable regional disparities, with the northern region recording 81.3 per cent (72 per cent for female students) and Lusaka a rate of 78.6 per cent. For children in the early years, the coverage of care, learning and education services remains persistently low. Overall, girls continue to be at a disadvantage with a large number of them dropping out in the upper primary and secondary grades, and poorer levels of transition to junior secondary and senior secondary levels.

Transition rates from primary to secondary school continue to remain low at 67.5 per cent, mainly due to the lack of places to accommodate all primary school graduates. Other barriers to children transitioning and completing secondary school include school fees introduced in Grade 8, other costs related to education (such as the cost of not otherwise contributing to household income), and the long distances to many schools. For girls at secondary level, there are also barriers around the lack of menstrual hygiene facilities, the low value placed by some communities on girls' receiving a secondary education, teenage pregnancy, and child marriage.

The quality of education also continues to be a challenge, though national assessments have shown significant improvement in this area. Nevertheless, the country's targets for achievement have not yet been met, for instance the target of an average score of 40 per cent in language and mathematics was not reached in either Grade 5 or Grade 9. The number of children passing the Grade 9 and Grade 12 examinations continues to be low, at 55.3 per cent and 64.8 per cent respectively.

5.4.4 Economic Activities

Zambia's economy has relied heavily on copper mining, which accounts for over 70 per cent of export earnings but employs less than 2 per cent of the population. Most people in Zambia (60 per cent) live in rural areas, where they depend on subsistence agriculture for their livelihoods. GDP growth averaged 6 per cent for the period 2006-2013, while inflation increased from 9.8 per cent in 2019 to 13.4 per cent in 2020. Poverty is most prevalent in rural areas (76.7 %) compared to 23.4% in urban areas¹. In both rural and urban households, poverty levels are highest among female-headed households, with extreme poverty levels of over 60 % in rural areas².

5.4.5 Sanitation and Wastewater System

According to the 2018 ZDHS, 33 per cent of the population have access to basic sanitation service (41 per cent in urban areas, 28 per cent in rural areas), while 10 per cent of the population practices open defecation (1 per cent in urban areas, 16 per cent in rural areas) and 24 per cent of the population has access to basic hygiene services, i.e. a handwashing facility with soap and water (36 per cent urban, 15 per cent rural). Thus a very

¹ Zambia Central Statistical Office. 2015. 2015 Living Conditions Monitoring Survey (LCMS).

² Living Conditions Monitoring Survey 2006-2011

large population in the rural areas in Zambia do not have access to proper sanitation facilities.

In Zambia, about 29% of the urban population are connected to sewers and 30% are served by septic tanks or improved household-level latrines. While these figures are low, they are actually higher than the average access in Sub-Saharan Africa. Most HCF in urban areas discharge their wastewater into municipal sewerage system, while rural facilities have onsite disposal. The wastewater from health care facilities is treated in accordance with the Environmental Management Act (EMA), No. 12 of 2011 which provides the standards for discharge into the designated streams. The district Water and Sewerage Companies regulates the discharge of trade effluent into sewer networks for both onsite and offsite sanitation using the local administration (Trade Effluent Regulations) Act of 1994.

5.4.6 Telecommunication

The capacity to communicate and access to information in Zambia have significantly increased with the provision of digital satellite, internet and mobile networks in the country. The providers include Zamtel, MTN and Airtel. Internet connectivity, though of intermittent service, is provided by the three cellular service providers. Internet penetration in Zambia however remains low at 15.4% which includes both domestic and corporate users. The number of mobile phone subscribers in the country has grown at a rate of 19.5% per annum in the last 8 years, which has reached 11.6 million people out of a population over the 14 million and a service penetration of 83.4% in 2018.

6 ENVIRONMENTAL AND SOCIAL IMPACTS & MITIGATION MEASURES

6.1 Project Beneficial Impacts

The project will generate positive and direct environmental and social impacts in the nation as it will improve efficiency of Town Councils and provide grants which will be used to facilitate for the implementation of capital projects. The sub-projects will lead to employment of locals in the different Town Councils which will enhance the social wellbeing of people in the project areas. The project will also improve the management of solid waste including e-waste which has a negative bearing on the environment. The projects will also facilitate for the construction and development of facilities for aiding environmental protection such as incinerators.

6.2 Project Adverse Impacts

Environment Impacts and Mitigation Measures

Environmental Impact	Proposed Generic Mitigation Measures
Impacts on Soil Resources	• Where possible, avoid clearing of vegetation, particularly of indigenous vegetation colonies; • Where clearing is done, land should be landscaped and reclaimed by planting more trees and other vegetation; • Where erosion may occur due to vegetation loss, erosion control measures will be put in place like stone bunds • Vegetation clearing and topsoil disturbance will be minimised where possible • Avoid moving heavy machineries and other equipment unnecessarily and away from designated transport routes; • Reclaim and re-vegetate the site once work is completed to reduce run off • Contouring temporary and permanent access roads / laydown areas to minimise surface water runoff and erosion • Sheet and rill erosion of soil shall be prevented where necessary through the use of sandbags, diversion berms, culverts, or other physical means

Environmental Impact	Proposed Generic Mitigation Measures
	• Topsoil shall be stockpiled separately from subsoil. Stockpiles shall not exceed 2 m height, shall be located away from drainage lines, shall be protected from rain and wind erosion, and shall not be contaminated. • Wherever possible construction work will take place during the dry season. • Topsoil shall be evenly spread across the cleared areas when reinstated. • Accelerated erosion from storm events during construction shall be minimised through managing storm water runoff (e.g. velocity control measures). • Soil backfilled into excavations shall be replaced in the order of removal in order to preserve the soil profile. • Mulch generated from indigenous cleared vegetation shall be spread across exposed soils after construction
Impact on Water Resources	• Discharge of Grey water or uncontrolled discharges from the site/working areas (including wash down areas) to adjacent rivers shall not be permitted • Water containing pollutants such as cements, concrete, lime, chemicals and fuels shall be discharged into a conservancy tank for planned removal from site

Environmental Impact	Proposed Generic Mitigation Measures
	• Works that are likely to generate silt-laden runoff such excavations will be undertaken preferentially during the drier months of the year; December-March • The drainage system will be developed to prevent silt-laden runoff from entering surface water drains and streams without treatment (e.g. earth bunds, silt fences, straw bales, or proprietary treatment) under any circumstances • Where possible an 8m buffer strip of existing vegetation will be maintained within the project site. • Earth stockpiles will be seeded as soon as possible, covered with geotextile mats or surrounded by a bund to minimise the risk of sediment-rich runoff • Tools and plant will be cleaned in designated areas within the site where runoff can be isolated for treatment before discharge to the river or nearby water resources • Debris and other material will be prevented from entering watercourses; Construction sites (such as settlement lagoons or other temporary attenuation) to be used during construction if necessary; Diversion of minor watercourses will be carefully managed to prevent suspension of silt (or contamination by other pollutants)

Environmental Impact	Proposed Generic Mitigation Measures
	• Discharge into watercourses and water bodies will only be carried out under consent of the relevant governing bodies such as WRMA • All wastewater which may be contaminated with oily substances must be managed in accordance with an appropriate Waste Management Plan (WMP) • Hydrocarbon-contaminated water shall not be discharged into the environment. • At operation stage, the sewer infrastructure will be constantly inspected and blockages repaired • At construction stage, the contractor will prepare Specific Construction Environment and Social Management Plan (C-ESMP) which included among others: Soil and Sedimentation Control Plan, Spoil Management Control Plan and Waste Management Plan.
Impacts on Air Quality	• Develop and implement a Dust Management Plan (DMP) and Undertake inspections to ensure compliance with the Dust Management Plan; • Record all dust and air quality complaints, identify cause(s), take appropriate • Undertake monitoring close to dusty activities, noting that this may be daily visual inspections, or passive/active monitoring as parameter

Environmental Impact	Proposed Generic Mitigation Measures
	• Remove dusty materials from site as soon as possible if not being re-used. If being re-used, cover or vegetate if possible; • Impose speed limits on haul routes and in construction compounds to reduce dust generation; • Undertake watering to attenuate dust near sensitive receptors. The duration and frequency of this should be set out in the Dust Management Plan and will consider water availability and any stakeholder grievances; and • Revegetate exposed areas as soon as feasible; • Revegetate or cover stockpiles if feasible; • Expose the minimum area required for the works, and undertake; and exposure on a staged basis to minimise dust blow.
Noise and Vibrations Impacts	• Siting noisy plant and equipment as far away as possible from human settlement, and use of barriers (e.g. site huts, acoustic sheds or partitions) to reduce the level of construction noise at receptors wherever practicable; • Where practicable noisy equipment will be orientated to face away from the nearest Human settlement and other receptors;

Environmental Impact	Proposed Generic Mitigation Measures
	• Working hours for significant noise generating construction work (including works required to upgrade existing access roads or create new ones), will be daytime only; • Alternatives to diesel and petrol engines and pneumatic units, such as hydraulic or electric-controlled units, will be used, where practicable; • Where practicable, stationary equipment will be located in an acoustically treated enclosure; • For machines with fitted enclosures, doors and door seals will be checked to ensure they are in good working order; also that the doors close properly against the seals; • Throttle settings will be reduced and equipment and plant turned off, when not being used; • Equipment will be regularly inspected and maintained to ensure it is in good working order. The condition of mufflers will also be checked; and fitting of mufflers or silencers of the type recommended by manufacturers.
Impact on Flora and Fauna	• Ensure proper demarcation and delineation of the project area to be affected by construction works;

Environmental Impact	Proposed Generic Mitigation Measures
	• Where possible, avoid clearing the vegetation; • It is recommended that indigenous trees or other fast-growing trees be planted in strategic locations where the vegetation cover will be cleared as part of landscaping initiatives; • Identify and restrict movement of vehicles to areas of disturbance. • Compensatory planting of trees i.e. plants at least twice the number of trees • Staged vegetation clearance is also recommended so as not to clear the entire corridor all at once. • The use of existing cleared or disturbed areas for the Contractor's Camp, stockpiling of materials etc. shall be encouraged. • Whenever possible, all damaged areas shall be reinstated and rehabilitated upon completion of the contract to as near pre-construction conditions as possible. • Reinstatement of temporary construction sites and pioneer camps (if needed) should be done as swiftly as possible and always with suitable native grasses and other plants

Generic Mitigation Measures of Social Impacts

Social Impact / Health and Safety Impacts	Proposed Mitigation Measures
Risk of Accidents and Safety and Health Concerns	• To reduce on the workers accidents and hazards, Contractor will develop and monitor implementation of a Health and Safety Management Plan which will include the following measures: a. Workers will be provided with suitable PPE including: to avoid cuts on the feet, hands and head during the course of duty. This include helmets, gloves, safety boots overalls, face masks and ear plugs in dusty and noise activities; b. Provision of adequate sanitary facilities to workers separate for either gender. c. Train all workers on Safety Health and Environment (SHE) with an aim of improving awareness; d. The workers or their representatives will be trained on first aid and provided with first aid kits

Social Impact / Health and Safety Impacts	Proposed Mitigation Measures
	e. Trenches over 1.5m deep will be secured against accidental entry by workers and the public using barriers and warning tapes. f. The contractor will install appropriate safety signage along the work areas; g. Emergencies: the workers should be provided with emergency telephone numbers to request for assistance at any time of accident h. Where construction activities interfere with the movement of traffic, appropriate signage will be installed and controlled by trained flagmen/flag women and lit by night. i. Public awareness/Training for first aid providers/divers j. Minimization of risks from hazardous material and hazardous wastes by developing waste management plans. These plans will be developed, implemented and monitored and will include colour coding of waste receptacles, labelling etc. k. Ensure that workers are oriented to the specific hazards of individual work assignments. Training should generally be provided to

Social Impact / Health and Safety Impacts	Proposed Mitigation Measures
	management, supervisors, workers, and occasional visitors to areas of risks and hazards •
Labour Influx Impacts	• Reduce labour influx by tapping into the local workforce. Depending on the size and the skill level of the local workforce, a share of the workers required for the project may be recruited locally. This may be easier for unskilled workmen. Specialized workmen may be hired from elsewhere. Local workers may also be trained especially if they are required for the operation of the project. • C-ESMP that contractor to prepare a Labour Management Plan (LMP)that included mandatory requirement to procure all unskilled (and as much as possible, semi-skilled) labor as well as locally available materials from the local community while ensuring equal pay for equal work for men, women and people with disability • The contractor will ensure effective community engagement and strong grievance mechanisms on matters related to labour with a discrete

Social Impact / Health and Safety Impacts	Proposed Mitigation Measures
	mechanism for safely and confidentially reporting issues of SEA and GBV at the community level triggered by the Project • Effective contractual obligations for the contractor to adhere to the mitigation of risks against labour influx, the contractor should engage a local community liaison person • The contractor will ensure proper records of labour force on site while avoiding child and forced labour • The works contractor should be required, under its contract, to prepare and enforce a No Sexual Harassment and Non-Discrimination Policy, in accordance with national law as well as to the World Bank Code of Conduct guidelines where applicable. • The contractor will ensure comply to provisions of Work Place Injuries and Benefits Act (WIBA) 2007 • The contractor will develop and implement a children Protection Strategy, this strategy will ensure that no child under the legal age of 18years in employed to the Project.

Social Impact / Health and Safety Impacts	Proposed Mitigation Measures
Gender Based violence and Sexual Harassment	• The existing community structures, the Ward Development Committees (WDCs) including traditional leaders should be involved in local labour hire, emphasize the requirement of hiring women, youth and people with disability. • Protecting Human Risk Areas Associated with, Disadvantaged Groups, Interfering with Participation Rights and interfering with Labour Rights: • Treat women and children (persons under the age of 18) with respect regardless of race, color, language, religion, political or other opinion, national, ethnic or social origin, property, disability, birth or other status. • Do not use language or behavior towards women or children that is inappropriate, harassing, abusive, sexually provocative, demeaning or culturally inappropriate. • Sexual activity with children under 18—including through digital media is prohibited. Mistaken belief regarding the age of a child and consent from the child is not a defense.

Social Impact / Health and Safety Impacts	Proposed Mitigation Measures
	• Exchange of money, employment, goods, or services for sex, including sexual favors or other forms of humiliating, degrading or exploitative behavior is prohibited. • Sexual interactions between contractor's and consultant's employees at any level and member of the communities surrounding the workplace that are not agreed to with full consent by all parties involved in the sexual act are prohibited. This includes relationships involving the withholding, promise of actual provision of benefit (monetary or non-monetary) to community members in exchange for sex – such sexual activity is considered “non-consensual” within the scope of this Code. • Where an employee develops concerns or suspicions regarding acts of GBV by a fellow worker, whether in the same contracting firm or not, he or she must report such concerns in accordance with Standard Reporting Procedures. • All employees are required to attend an induction-training course prior to commencing work on site to ensure they are familiar with the GBV Code of Conduct (CoC).

Social Impact / Health and Safety Impacts	Proposed Mitigation Measures
	• All employees must attend a mandatory training course once a month for the duration of the contract starting from the first induction training prior to commencement of work to reinforce the understanding of the institutional GBV Code of Conduct.
Children Protection	• The contractor will develop and implement a Children Protection Strategy that will ensure minors are protected against negative impacts associated by the Project including SEA. • All staff of the contractor must sign, committing themselves towards protecting children, which clearly defines what is and is not acceptable behaviour • Children under the age of 18 years should not be hired on site as provided by Child Rights Act (Amendment Bill) 2014 • Wherever possible, ensure that another adult is present when working in the proximity of children. • Not invite unaccompanied children to workers home, unless they are at immediate risk of injury or in physical danger.

Social Impact / Health and Safety Impacts	Proposed Mitigation Measures
	• Refrain from physical punishment or discipline of children • Refrain from hiring children for domestic or other labor, which is inappropriate given their age, or developmental stage, which interferes with their time available for education and recreational activities, or which places them at significant risk of injury. • Comply with all relevant local legislation, including labor laws in relation to child labor specifically provisions of Zambia Employment Act on protection of children against exploitation
Sexual Exploitation and Abuse (SEA)	• Develop and implement a SEA action plan with an Accountability and Response Framework as part of the C-ESMP. The SEA action plan will follow guidance on the World Bank's Good Practice Note for Addressing Gender-based Violence in Investment Project Financing involving Major Civil Works (Sept 2018). • Prevention of SEA: including Code of Conduct (COC) and ongoing sensitization of staff on responsibilities related to the COC and consequences of non-compliance; project-level IEC materials;

Social Impact / Health and Safety Impacts	Proposed Mitigation Measures
	• Engagement with the community: including development of confidential community-based complaints mechanisms discrete from the standard GRM; mainstreaming of Sexual Exploitation and Abuse (SEA) awareness-raising in all community engagement activities; community-level IEC materials; regular community outreach to women and girls about social risks and their SEA-related rights; • Management and Coordination: including integration of SEA in job descriptions, employments contracts, performance appraisal systems, etc.; development of contract policies related to SEA, including whistle-blower protection and investigation and disciplinary procedures; training for all project management; management of coordination mechanism for case oversight, investigations and disciplinary procedures; supervision of dedicated PSEA focal points in the project and trained community liaison officers.
Spread HIV/AIDs	• Education and sensitization of workers and the local communities on STIs including provision of condoms to the project team and the public; • Institute HIV/AIDS awareness and prevention campaign amongst workers for the duration of the contract e.g. erect and maintain HIV/AIDS

Social Impact / Health and Safety Impacts	Proposed Mitigation Measures
	information posters at prominent locations as specified by the Resident Engineer; • Procure and distribute Condoms among staff and community members • Sensitize workers and the surrounding communities on awareness, prevention and management of HIV/AIDS and sexual health and rights through staff training, awareness campaigns, multimedia and workshops or during community Barazas. • Use existing clinics to provide VCT services to construction crew and provision of ARVs for vulnerable community members
Spread of COVID-19 among Community Members	• Avoid concentrating of more than 15 community members at one location. Where two or more persons are gathered, maintain social distancing of at least 2 meters; • The team carrying out engagements within the communities on one-on-one basis will be provided with appropriate PPE for the number of people they intend to meet;

Social Impact / Health and Safety Impacts	Proposed Mitigation Measures
	• Use traditional channels of communications (TV, newspaper, radio, dedicated phone-lines, public announcements and mail) when stakeholders do not have access to online channels or do not use them frequently. Ensure to provide and allow participants to provide feedback and suggestions. • Hold meetings in small groups, mainly in form of FGDs if permitted depending on restrictions in place and subject to strict observance of physical distancing and limited duration. • In situations where online interaction is challenging, disseminate information through digital platform (where available) like Facebook and WhatsApp & Chat groups. • Ensure online registration of participants, distribution of consultation materials and share feedback electronically with participants.
Conflicts associated with the Project	• The community will be constantly sensitized on available Grievance Redress Mechanism established by Program. The mechanisms emphasizes resolution of disputes at Common Interest Group (CIG) level, which is the lowest community structure.

Social Impact / Health and Safety Impacts	Proposed Mitigation Measures
	• In consultation with the benefiting communities and develop means to ensure equitable sharing of resources

Table 6-1: Environmental and Social Monitoring Plan

Impact	Performance Indicators	Monitoring Requirements	Frequency	Responsibility
Effluent waste	☐ Effluent standards ☐ Signs of obstruction of drainage systems. ☐ Flow of wastewater on the ground surface.	☐ Physical inspection ☐ Compliance with applicable wastewater effluent parameters. ☐ Number of complaints	☐ Daily	☐ Local Authority
Air Pollution	☐ Availability of alternative waste disposal methods	☐ Physical inspection ☐ Compliance with applicable legal air emission permits ☐ Interview with residents including workers ☐ Observations of open burning	☐ Monthly	☐ Local Authority
Child Labour/Forced Labour	☐ Record of employees including IDs	☐ Review of records ☐ Interviews with staff and local community ☐ Reports of LMP implementation ☐ Application of worker GRM	☐ Monthly	☐ Local Authority

Gender Equity and Sexual Harassment	☐ Number of complaints ☐ Availability of a GBV/SEA-H Action Plan; ☐ Availability of Code of Conduct	☐ Review of grievance redress forms. ☐ Interviews with local community ☐ Implementation of GBV action plan ☐ Enforcement of code of conduct ☐ GRM reports ☐ Implementation of SEP activities	☐ Monthly	☐ Local Authority
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Occupational Health and Safety (Workers Exposure)	☐ Availability of PPE for workers ☐ Availability of first-aid kit, ☐ Availability of fire extinguishers, fire blankets ☐ Availability of notices indicating hazard area demarcation equipment ☐ Record of trainings given to workers on exposure minimisation ☐ Number of worker exposures recorded	☐ Physical and routine inspections to determine use of PPEs and other equipment. ☐ Documentation of training given to workers ☐ Documentation of exposure incidences, workplace illnesses, accidents and incidents.	☐ Daily inspection ☐ Training frequency conducted annually or as needed	☐ Local Authority
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Community Health and Safety	☐ Visual inspection, waste disposal ☐ Number of recorded complaints through the GRM process.	☐ Physical and routine inspections to determine waste management mechanisms. ☐ GRM report on resolution of health and safety complaints	☐ Monthly	☐ Local Authority
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6.3 ESMP Implementation

6.3.1 Project Management Unit

The Ministry of Local Government and Rural Development will be responsible for the overall coordination of planning, implementation and monitoring of the Program. The other key agencies during implementation will include, Local Authorities, the OAG, MoFNP, Decentralisation Secretariat, the Zambia Public Procurement Authority (ZPPA) and. The project is fully integrated and mainstreamed in the current structure of the government, and no parallel structures will be created outside of government for the purposes of project implementation. This arrangement has been adopted to ensure ownership and sustainability. The Project Management Unit (PMU) is anchored within the Ministry of Local Government and Rural Development. The PMU staff will include: (i) a Project Coordinator; (ii) a Monitoring and Evaluation (M&E) Specialist; (iii) a Financial Management Specialist; (iv) a Procurement Specialist; (v) Environmental Safeguards Specialist; (vi) Social Safeguards Specialist; (vii) Capacity Building Specialist and (viii) Communications Specialist. The fully staffed PMU will be in place by project effectiveness.

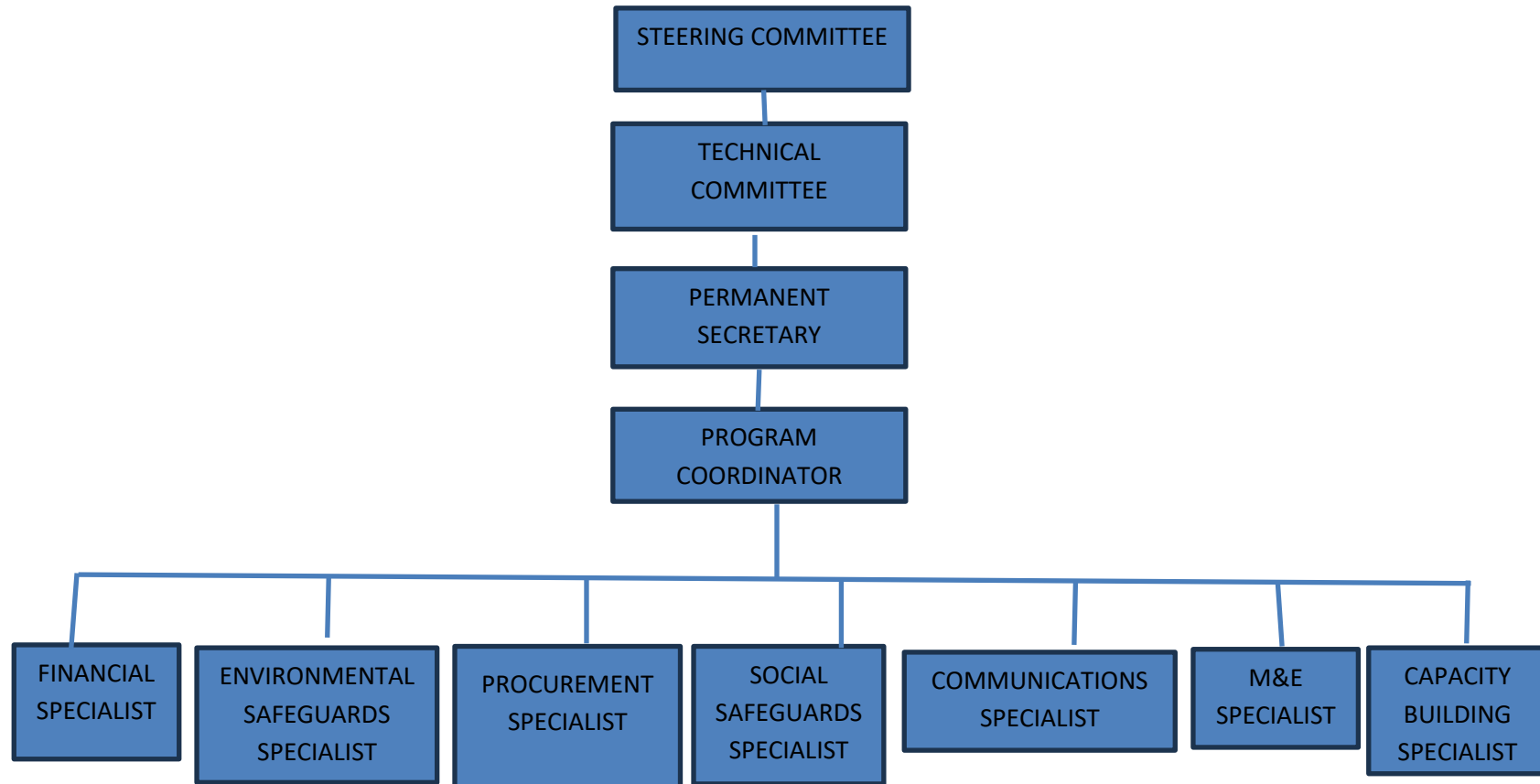
The PMU will be responsible for managing the day-to-day operations of the project. Its main functions include: (i) providing logistical support and guidance to the component managers and teams; (ii) compiling work plans, budgets and procurement plans from various component teams; (iii) monitoring project implementation and preparing progress reports; (iv) submitting consolidated annual work plans, and budget and procurement plans for review and endorsement; (v) maintaining project accounts, managing designated accounts and preparing project financial statements; (vi) submitting withdrawal applications to the World Bank for replenishment; and (vii) making recommendations to the committees on how to effectively implement the agreed work plan. The substantive leadership for the project activities will be provided by the MoFNP and

MLGRD through a Project Steering Committee, as well as through a Technical Committee.

6.3.2 Organisational Structure/Organogram

The PMU is a multi-disciplinary team headed by a Program Co-ordinator. The PMU will function under the technical guidance of the technical committee which will be supervised by the Project Steering Committee. The Technical Committee is chaired by the Permanent Secretary MLGRD and Steering Committee is chaired by Secretary to the Treasury. The PMU will be led by a Project Coordinator and supported by technical staff recruited to fill key positions relevant for the successful implementation of the project. The Project Management Organogram is given in figure 6-2.

Figure 6-1.ZDSP - Program Management Organogram



The PMU will function as the Secretariat to the PSC and is also responsible for day-to-day project implementation through qualified staff that will be recruited to implement the project. The main roles of the PMU are:

- (i) Project Management;
- (ii) Administration Support;
- (iii) Financial Management;
- (iv) Procurement Management;
- (v) Environmental and Social risk management; and
- (vi) Monitoring and Evaluation

7 STAKEHOLDER ENGAGEMENT AND GRIEVANCE REDRESS

Stakeholder engagement is one of the most important tools for the implementation of the ESMP. It provides a better understanding of the conditions in the project area and the concerns of stakeholders. It is also essential to ensure the effectiveness of the mitigation measures developed under the ESMP. A Stakeholder Engagement Plan (SEP) has been prepared to identify the key stakeholders of the Zambia Devolution Support Program, establish stakeholder engagement measures, and provide a grievance mechanism (GM). The SEP outlines how, when, and ways in which the project team will communicate and consult with stakeholders including vulnerable groups and a mechanism by which people can raise concerns, provide feedback, or make complaints about project and any activities related to the project. The SEP has been prepared according to Environmental and Social Standard 10 (ESS 10) on Stakeholder Engagement and Information Disclosure of the World Bank's Environmental and Social Framework (ESF). It will cover the whole life of the Project.

The overall objectives of SEP as stated in the ESS-10 are to:

- Identify the roles and responsibility of all stakeholders and ensure their participation in all stages of the project cycle.
- Establish a systematic approach to stakeholder and citizen engagements that will help to identify stakeholders and build and maintain a constructive relationship with them, project-affected parties.
- Assess the level of stakeholder interest and support for the project and to enable stakeholders' views to be considered in project design and environmental and social performance.

- Promote and provide means for effective and inclusive engagement with project- affected parties throughout the project cycle on issues that could potentially affect them.
- Ensure that appropriate project information on environmental and social risks and impacts is disclosed to stakeholders in a timely, understandable, accessible, and appropriate manner and format taking special consideration for the disadvantaged or vulnerable groups.
- Provide project-affected parties with accessible and inclusive means to raise issues and grievances and allow the Project Implementing Entity and its Project Management Unit to respond to and manage such grievances.

7.1 GRIEVANCE MECHANISM

7.2 Objectives

The GM is intended to:

- Provide avenues for stakeholders to seek information and ask questions on the Zambia Devolution Support Program.
- Provide project affected people with avenues for lodging concerns, complaints and resolving disputes arising from project activities.
- Ensure that appropriate and mutually acceptable redress actions are identified and implemented to the satisfaction of complainants.
- Provide avenue for vulnerable groups and victims of SEA/SH to have equal access to grievance redress process and support.
- Avoid project-community conflicts and improve community support for the project activities.

Although project affected parties have the right to seek redress in court, the project recognizes that court cases are known to be cumbersome and time consuming. Therefore, the project, through this GRM intends to propose an alternative simple but functional first point procedure for aggrieved project affected persons to amicably seek redress to their complaints. Nonetheless, aggrieved persons would remain free to access the court system without any hindrance or retribution from the project as provided by the laws of Zambia

7.3 Principles of the GM

The operationalization of this GM shall be guided by the following principles.

- An accessible, inclusive, and free grievance mechanism (GM), broadly disclosed, which facilitates the resolution of concerns and grievances in a safe, confidential, and timely manner.
- A grievance mechanism that allows stakeholders to file complaints by various means (face-to-face, mail, email, phone, text, website, and in person) and when necessary, in an anonymous manner.
- A grievance mechanism that provides a clear, impartial, and objective procedures for handling and responding to complaints, including timelines for acknowledgement, decisions, and appeals.
- A grievance process free of retaliation, abuse, or discrimination.
- A grievance mechanism that provides an avenue for lodging SEA/SH cases in a safe, confidential, and non-stigmatizing manner and with a referral pathway for such cases

7.3.1 Local Authority Management of the GM

The overall management of the GM will reside with the designated Safeguards Focal Person. The Safeguard Focal Person will specifically be responsible for:

- The disclosure of the GM to project stakeholders.
- Sensitization of implementing partners and staff on the GM.
- Keeping records of all complaints received, updating, and closing complaints.
- Pre-empting and facilitating activities of Grievance Committees (GC).
- Checking if all grievances have been addressed and follow-up actions have been taken.
- Escalating cases to PMU
- Referring survivors of SEA/SH cases to Gender Based Violence (GBV) service providers
- Monitoring and producing biannual performance report on the GM.

7.3.2 Description of GM

Grievances will be handled at each sub-project site and addressed by the Town Council through designated channels. The project specific GRM will be established and become operational 30 days after project effectiveness. The GRM will include the following steps:

I. Step 1: Submission of grievances either orally or in writing:

Submission of grievances will either be orally or in writing to a GRM officer in the Town Council. Walk-ins may register a complaint on a grievance logbook at project site or civic centre. To ensure the GRM is accessible to all stakeholders, particularly in rural areas and those that are vulnerable, specific measures will be explored during consultations and reflected in the updated SEP. The GRM will also allow anonymous grievances to be raised and addressed.

II. Step 2: Recording of grievances within 24 hours: Grievances will be recorded and classified based on the typology of complaints and the complainants to provide more efficient response and providing the initial response within 24 hours by the GRM officer. The typology will be based on the characteristics of the complainant (e.g., vulnerable groups, persons with disabilities, people with language barriers, etc.) and the nature of the complaint.

III. Step 3: Investigating the grievance and Communication of the Response within 14 days.

IV. Step 4: Complainant Response: either grievance closure or taking further steps if the grievance remains open. If grievance remains open, complainant will be given opportunity to appeal to Grievance committee that will be set up.

V. Step 5: Monitoring and evaluation: Grievances will be monitored based on whether the resolution was efficient and if there were any lessons learnt. At the end of each month an analysis of complaints will be provided and will include a breakdown of cases received, resolved, pending, actions taken, data by gender and types of complaints. This will be part of the quarterly and annual reporting.

Once a complaint has been received, by any channels, it should be recorded in the complaints logbook or grievance excel-sheet/grievance database. Once all possible redress has been proposed and if the complainant is still not satisfied then they should be advised of their right to legal recourse.

The PMU will use the existing institutional Grievance Redress Mechanism (GRM) to address all citizen complaints and requests. The system and requirements (including staffing) for the grievance redress chain of action – from registration, sorting and processing, and acknowledgement and follow-up, to verification and action, and finally feedback—are incorporated embodied in this GRM. In emergency, to encourage proactive beneficiary engagement, the outreach messages and information will be communicated through mass media, social media and city/district information boards to reach people at large.

Other measures to handle sensitive and confidential complaints, including those related to Sexual Exploitation and Abuse/Harassment (SEA/SH),

will be identified in the GBV Action Plan. With respect to GBV related complaints, special procedures will be adopted to ensure anonymity and referral procedures to associated NGOs who are experienced in handling GBV cases will be set up. Once all possible redress has been proposed and if the complainant is still not satisfied then they should be advised of their right to legal recourse.

ANNEX Gender Based Violence Action Plan

7.4 Gender Based Violence Action Plan

Activity to Address GBV/SEA/SH/VAC risk	Steps to be taken	Time Lines	Responsible	Who will monitor	Output Indicators	Budgets (USD)
Strengthen Institutional capacity for SEA/SH risk mitigation and response						
Apoint a GBV/SEA focal point at the Local Authority to supervise and provide technical support for the implementation of SEA/SH Action Plan	Develop ToR Prepare reports	Third month	Council Management	ZDSP PMU & ESS Technical Team	Registered success of the project	
Support capacity of local systems to prevent and respond to GBV/SEA (police, health, legal, CDO's, CBO's). Strengthen the reporting	Identify key stakeholders to engage Develop training plan	Continuous	Environment and Social Specialists	ZDSP PMU & ESS Technical Team	List of trained stakeholders Number of trainings	10,000

mechanisms & procedures of local systems. • Conduct training to include: HR policies on SEA/SH • SEA/SH reporting and allegation procedures	Develop training material/ content				conducted	
Strengthen a survivor centered referral and response. Strengthen coordination for better services with local/national GBV/SEA service provider	Global/National standards, human rights and survivor centered approaches Conduct training and mentoring		Environment and Social Specialist		Number of coordination meetings conducted Readily available materials for reference	

	Conduct regular coordination meetings with service providers for effective referrals					
Integrate GBV/SEA/SH risk management in Contractors' Environment and Social Management Plan (ESMP)						
Incorporate GBV/SEA/SH risk in the ESMP	Integrate consideration for GBV/SEA during implementation of this ESMP	Immediate	Environment and Social Specialist	ZDSP PMU & ESS Technical Team	Updated ESMP with SEA/SH	

Develop M&E programme	Develop an M&E plan to monitor work plan implementation Monitor SEA/SH Implementation Plan	Immediate	Monitoring and Evaluation Specialist	ZDSP PMU & ESS Technical Team	M&E framework in place Number of monitoring activities done and reports produced on quarterly basis.	5,000
Inform project affected communities about GBV/SEA/SH risks						
Develop information dissemination strategy	Develop a strategy Identity the methods to disseminate the information	Immediate	Environment and Social Specialists	ZDSP PMU & ESS Technical Team	A SEA/SH communication strategy in place	5,000

	Dissemination of information publicly to stakeholders				No of IEC materials disseminated	
Develop/adapt relevant IEC materials for community engagements	Develop relevant IEC materials translated in local languages of the project location	First and second month	Environment and Social Specialists	ZDSP PMU & ESS Technical Team	No and type of SEA/SH IEC material developed	10,000
Establish partnerships with key stakeholders (CBOs/CSO's and local government institution)	Identify and select partners Engage partners, conducting joint Community meetings and awareness raising	Third month	Town Council E&S Safeguards Focal Point	ZDSP PMU & ESS Technical Team	Partnership map/report	5000

Conduct community sensitization on SEA/SH risks	Develop a community sensitization plan, material and messages. Conduct community sensitization (Radios, posters, community engagements)	Third month	Town Council E&S Safeguards Focal Point	ZDSP PMU & ESS Technical Team	Number of District, sub county and community sensitization conducted Report of the activity with clear action points	25,000
GBV/SEA sensitive channels for reporting in GRM						
Develop/Review GRM for specific SEA/SH procedures	Undertake internal review of GRM for SEA/SH mitigation	Immediate	Environment and Social Specialists	ZDSP PMU & ESS Technical Team	GBV/SH procedure integrated MoH- GRM module	

	Integrate SEA/SH entry points within the GRM with clear procedures Develop/update SEA/SH reporting and allegation procedures.					
Identify and train SEA/SH focal points within the GRM who will be responsible SEA/SH cases referrals to relevant stakeholders as defined in the referral pathway.	Identify and select GBV/SEA focal persons within the Town Council Clarify the role of the focal points in GBV/SEA as referral	First and second months	Social Safeguards Specialist	ZDSP PMU & ESS Technical Team	Number of focal persons identified and trained in all districts Number of GBV cases received, referred and	

Incorporate GBV//SEA/SH Requirements and expectations in the contractor/suppliers/consultants' contracts.	Ensure that SEA/SH issues are incorporated in all contracts signed by contractors/consultants/ suppliers	Immediate	Social and Procurement Specialists	ZDSP PMU & ESS Technical Team	SEA/SH standards in procurement contract document	
Allocation of funds for GBV/SEA/SH related costs in procurement documents.	Clearly define SEA/SH requirements and expectations in the bid documents under ESMP activities	First and second months	Financial Specialist	ZDSP PMU & ESS Technical Team	Bid documents with clearly defined SEA/SH requirements	
Codes of Conduct signed and understood	Define the requirements to be included in the CoC which addresses SEA/SH Review CoC for provisions/clauses that	Third month	Town Council	ZDSP PMU & ESS Technical Team	Contract documents with clearly defined SEA/SH clauses /requirements	

	guard against SEA/SH				Revised CoC	
	Have CoCs signed by all contractors /suppliers / consultants.				Signed CoCs	

